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CASE #	CASE NAME	HEARING NAME
CVRI2305019	RICARDO vs MILLER ENVIRONMENTAL, INC.	MOTION FOR PROTECTIVE ORDER

Tentative Ruling: The Court declines to consider Plaintiff's sur-reply. The Court DENIES the motion for a protective order in full. Defendants shall produce all responsive documents within 30 days; to wit, no later than 5 p.m., Thursday, September 10, 2026.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2305019	RICARDO vs MILLER ENVIRONMENTAL, INC.	MOTION TO COMPEL AND SET THE DEPOSITION DATES FOR PLAINTIFF'S RETAINED EXPERTS AND REQUEST FOR MONETARY SANCTIONS

Tentative Ruling: The evidence shows that Defendants noticed the depositions of Scott I. Barer and Dr. Jacqueline Nolan, but took them off calendar on June 26, 2026. (Heraldez Decl., Exh. B.) In their Reply, Defendants concede that they are no longer seeking to compel the depositions of Plaintiff's experts. (Reply, pp. 4-5.) Accordingly, the motion to compel is MOOT.

Code of Civil Procedure section 2025.450(g)(2) provides that the court shall impose a monetary sanction unless it finds the party who unsuccessfully moves to compel a deposition acted with substantial justification or other circumstances make the imposition of the sanction unjust.

Section 2023.030 allows the court to impose a monetary sanction on a party who engages in the misuse of the discovery process, which includes unsuccessfully making or opposing a motion to compel or to limit discovery without substantial justification under section 2023.010.

Here, Defendants were substantially justified in initially filing the motion to compel the deposition of Plaintiff's retained experts and the related ex parte application to advance the hearing date given the then-upcoming trial date. But the issue is whether Defendants were justified in failing to withdraw this motion once the Court continued the trial date and Defendants realized that the motion was no longer necessary. The evidence shows that Defendants took the noticed depositions of Plaintiff's experts off calendar on June 26, 2026. (Heraldez Decl., Exh. B.) Plaintiff sought sanctions against Defendants for failing to withdraw this motion in his Opposition, filed on July 30, 2026. However, Defendants did not reach out to Plaintiff to discuss withdrawing motion until the day before their reply was due and only gave Plaintiff less than 5 hours to respond. (Brown Decl. II, ¶ 2-4 and Exh. 1.) Plaintiff refused to waive his request for sanctions. (Brown Decl. II, ¶ 5.) Accordingly, it would not be unjust to impose sanctions because